Ramakrishna Aiyar vs Narayana Aiyar on 24 February, 1800

Equivalent citations: (1897)7MLJ227

JUDGMENT

1. The appellant is the assignee of a decree for: money made in favour of one Easwara Aiyar against the respondent. The respondent is the holder of a decree for a much larger sum against the same Easwara Aiyar. Subsequently to the assignment to the appellant an order was made to the respondent's application that the amount due to him under his decree should be set off against the amount due by him under the other decree. This order is dated; 31st of January 1891. The appellant was no party to it, for at that date his name had not been brought on the record. Notwithstanding this, the appellant claiming as assignee sought to have the decree executed against the respondent. By an order, dated 5th September 1893, his application was dismissed. On the 17th September 1894 the appellant succeeded in having his name brought on the record and he then launched the present application for the execution of his decree.

2. There can be no doubt that, as between the original parties to the two decrees, that is, Easwara Aiyar and the respondent, this application must necessarily have failed nor would it make any difference that one of the decrees had been assigned to a third party. But it is argued that the appellant is not an assignee of the decree within the meaning of Sections 233 and 246 of the Code inasmuch as it is the decree of the appellate Court that it is sought to execute, and his assignment took place before the appeal was: instituted. It is said that the sections cited apply only to the case, of an assignment of an existing decree and in this case the decree was not in existence when the assignment was made. As a matter of fact, it appears that it was the original decree which was assigned to the appellant and was afterwards confirmed on appeal. We are asked to treat the case as if it were one in which an interest in the subject-matter of the suit had been transferred pending the suit, the case for which Section 372 provides.

3. We are of opinon, however,that, as the appellant was clearly transfereee of the decree in existence when the transfer took place, he did not cease to be transferee by reason for the fact that an appeal was presented.

4. In that appeal Easwara Aiyar remained the party on the record, and it was not shown that the respondent had any notice of the assignment to the plaintiff. The same state of things continued up to the date of the order of the 31st January 1891. We should be prepared to hold that, as the appellant suffered Easwara Aiyar's name alone to remain on the record and proceedings to be taken accordingly, he must be bound by the order passed in consequence. But We also think tbat the appellant is an assignee of the decree within the meaning of Section 249.

5. We must dismiss the appeal with costs.